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From Empires of Nations to the Nation-State of Minorities.

The Concept of National Minority in Russian Poland and the New Polish State 1900–1922

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Abstract:

The aim of this article is to investigate the concept of minority up to the temporary stabilization of its meaning in Polish concluded in the adoption of the March constitution of 1921. The history of the concept of national minority bore an imprint on the accommodation to the new political, territorial, and discursive circumstances after transition from empire to nation state. The idea itself was well anchored in the liberal tradition, but the nationalist right also took it on board to protect the cultural hegemony of the Poles in the areas where they were a minority.

Understanding the nexus of the emerging nation-state and the ensuing logic of minoritization sheds light on tiered visions of citizenship essential for understanding the 1921 debate. For this purpose, I use various available sub-corpora of texts—political leaflets, press, and parliamentary debates from the period 1788–1922.

Keywords:

Constitution, diversity, empire, national minority, nation state, nationalism, Poland

In recent years, eastern European studies witnessed a rising tide of contributions dealing with majority–minority relationships, migration policies, parliamentary solutions for composite states, and federative ideas. These endeavors doubtlessly contributed to our understanding of the emerging post-imperial states and their future political trajectories. It is surprising, however, that not much attention was dedicated to the actual conceptual backbone of these debates. Like many other studies of late empires and ensuing nation-states, they tend to project the categories emerging in the context of negotiating the new state order to the times preceding it, with a tacit ambition to describe relationships allegedly leading to the known future outcomes.¹ This may reify layers of time, ahistorically assuming the unavoidability of, for instance, imperial collapse and fracturing of the lands along national lines, with the hidden assumption that national–cultural groups must have territorial character and hence, they inhabit areas somehow properly assigned to them.

In addition to this ahistoricity oriented backward, there is also a historicity directed forward. Legacy, “a phenomenon that persisted from the past” and is not explainable by the present factors,² entangled these concepts in broader semantic fields or past social practices that dragged along. For instance, the concept of minority, despite its liberal provenance in parliamentary politics and religious freedoms, served well the nationalized raster of postwar Europe.³ It was marked by associations from context where it was previously used as electoral politics and parliamentary chambers, which made it a useful tool to delegitimize political claims. At the same time, the notion of minority does not describe accurately the realities before it was codified as an actively used one.⁴ The gamut of these entanglements needs to be considered while analyzing the transformation from a sub-imperial region with a dominant population subsumed under a larger state entity into a nation-state subsuming its minorities, that is, Poland.

This was the largest of the states built after World War I and a strongly nationalizing one facing a very heterogeneous population.⁵ The new Poland, replacing the earlier imperial state figurations, was nothing less than an “empire writ small.”⁶ However, as unitary “nation”-state it differed significantly in modes of managing social heterogeneity, and this difference refers to the emergence of the concept of minority itself. Against this backdrop, conceptual legacies purposefully or unintentionally designate groups and thus make minorities an especially vital question. A national minority is the reverse of full nationality and citizenship entitled to the full participation in the national body politic. This juxtaposition emerges historically, and well into the nineteenth century, citizenship had not been not bound to nationality. Thus, the very act of naming, according to the minoritization principle, helped to create populations external to this body politic and easily subjected to singularization, essentialization, exclusion and—in many cases—persecution or even extermination.⁷ On top of this, these populations were pushed into a downward spiral of looking for assistance from their homelands or international bodies, which propelled their perception as foreign and dangerous.⁸ These entanglements make active creation of “minority” in language worth studying.

Meanwhile, studies of the late imperial period tend to concentrate on particular events, such as Duma elections, the anti-Jewish boycott, the debate on self-governance, and the like.⁹ In turn, the research on cultural heterogeneity in the emerging nation-states suggests a pivotal change brought from outside by the great powers building a new world order in Versailles.¹⁰ Indeed, the 1919 Peace Conference created new states according to the impossible “one nation, one state” formula, resulting in more than 25 million “unassimilable” minorities of various social standing. Accordingly, the accompanying Minority Treaties, first with Poland and later with other states, sought to manage these “ethnic reversals,” as Liliana Riga and James Kennedy termed them.¹¹ While the treaties were constructions recently conceived and imposed from above, they

were not a painting on a blank canvas. This study aims to provide context for the ensuing debate in Poland (and in Polish) by studying the existing legacy of the concept of minority.

It does so by focusing on the debate in the Russian-controlled Kingdom of Poland. This decision is not uncontested, as arguably German, and especially Austrian, context had an equally significant impact on the emerging Polish political vocabulary. Ideas traveled between empires with the Polish circulation spanning between all three of them. The focus on Russian Poland only offers more analytical clarity needed to trace the transfers into this context from other Polish-speaking tributaries. This strategy is not unproblematic but avoids glossing over the fact that the Polish debate cannot be ahistorically merged into one, a gesture producing a nation, existing for many but not obliterating the existence of three Polish nationalities with their problems and debates set within three empires. Hence, I provide information on the Austrian debate insofar as it was contributing to the history of the concept seen from within the Russian context. In addition, in Russian Poland, the transfer of political concepts often remained hidden. While intellectuals used to study foreign and émigré texts, and journals from other partitions were willingly read, there was hardly a space to express these ideas in writing. Before 1906, the Russian imperial censorship apparatus was very sensitive to social and political topics, and there was not much space for negotiation. Therefore, there were significant asynchronicities and ruptures in the studied semantic field with hidden transfers and abrupt emergence of concepts.

In what follows, I apply a relatively traditional form of history of concepts, as outlined by the seminal Reinhart Koselleck. I assume that history is inherently entangled in language, a building block of symbolic reality for historical actors and the carrier of senses in historical sources.¹² I follow social embedding and metaphorical legacies of one of the key concepts of European political modernity. To do so, I combine the classic diachronic approach with partial reconstruction of more strategic uses in debates, trying to give the concept a polemical twist

against other positions in a given synchronic field.¹³ As social reality is interpreted and shaped in language, the baggage carried by a concept itself, as a product of layering of time, is an important intervening factor.¹⁴ Many concepts are hidden metaphors, and “visions and divisions” present in the realm of original metaphor can be dragged along beyond its context of emergence, shaping the new meaning and ensuing social practice.¹⁵ Correspondingly, I focus more on the semasiological aspect, following the name in its different iterations and looking how past transfers impacted future pathways.

Moreover, the concept of minority cannot be grasped without reference to its counter-concept—majority. Counter-concepts most commonly refer to the particular groupings of people in their relation to the outside world (or, in some cases, to specific enemies), as it was introduced by Koselleck in two seminal essays.¹⁶ The main focus in the *Gegenbegriffe* essay (and the accompanying depiction in the *Feindbegriffe* one) are the pairs identifying themselves as “us”-groups. However, Koselleck also suggests the possibility of analyzing the other side, which might be called a counter-articulation of the excluded “outside” group. For Koselleck, “‘asymmetric’ classifications are these conflicting labels, employed only in one direction and in an unequal fashion.”¹⁷ They have the power of denotation and facilitate political agency (*Handlungseinheit*) as “concepts by means of which it [the group] circumscribes itself and hence excludes others, and therefore, by means of which it defines itself.”¹⁸ Moreover, once established, an asymmetric pair is bound by its structural constraints, which may influence the intentions and actions of the parties involved: “concepts employable in a particularly antithetical manner have a marked tendency to reshape the various relations and distinctions among groups.”¹⁹ However, as we will see, the minority–majority nexus was easily reversible, not only in a sense of detachment from quantitative anchorage, but also in a sense of positive or negative evaluation or relationships between the in-group and the outgroup. While minority and majority often function as a pair, they

are not asymmetric, strictly speaking. Thus, the label “symmetrical counter-concepts” does a better job to tackle the pair. This symmetry notwithstanding, the concept of minority could engage other concepts in asymmetrical couplings, as, for example, in the tacit relationship to the full citizenship or nationality.

Prehistory

Arguably, the notion of minority emerged within parliamentary discourse and established itself in Western European languages along with the modern parliamentary form. Minority was perceived as a grounding concept for political parties, as organizations defending the rights of minorities were otherwise deprived of chances to push their ideas through.²⁰ Additionally, minority served to describe divergent parliamentary dynamics in a non-confrontative way. The notion of “opposition” was sometimes consciously weeded out so as not to antagonize the government, hence serving the legitimization of parliamentarism in monarchical contexts.²¹

There is an intimate, spectral link between the primary concept of parliamentary minority and its later homonym of national minority. After all, people living in a country were connected with envoys in the parliament by the intimate link stemming from the idea of representation.²² While the envoys represented the people as if they were themselves debating and forming majority and minority, there was a reversed connection as well. Deployment of various parliamentary groupings (minority versus majority) might have been reversely projected on the population to gauge the reach of interest groups. Since the nation was represented in parliament (regardless of the actual reach of suffrage), the nexus of minority and nationality could have emerged. It took a while until the simple parliamentary calculus was applied to broader populations and minority would refer to groups with particular characteristics, long described in

other ways, for instance, as nationalities in imperial orders.²³ The estate-based order of ranks and imperial legality did not require quantitative measurement. Citizenship was conceived politically, without singling out ethnicities. Thus, this chiasm remained latent up to the post-imperial double transformation in Eastern Europe, when democratization and nation building loomed large at a high pace.²⁴

This is also the story of the Polish language. While the Polish-Lithuanian Commonwealth was a peculiar republic of the nobles with legislative assembly (the Sejm), voting was performed by acclamation. In the world of coteries connected by family relationships and dynastical interests,²⁵ there was little need to describe actual influence of ideas among envoys. Obviously, some of them did care about particular programs of reform but not yet formed political parties in a modern sense.²⁶ Correspondingly, there was no concept of (parliamentary) minority, although in the years of the so-called Great Sejm (1788–1792), there was already a debate on factions and the influence of particular groups over the nation, as the voting was for the first time performed according to the majority principle.²⁷ The concept of minority could emerge only along with the introduction of voting by number.²⁸ The modern ideal of representation replacing imperative mandate, the ideal of parliamentary deliberation and majority voting made a breakthrough during the Sejm proceedings of the post-Viennese Kingdom of Poland, pushed forward by the November Uprising in 1831.²⁹ Then the notion of parliamentary minority took hold and members of this Sejm did use the notion of minority in their proceedings.³⁰ Meanwhile, the dictionaries followed suit, reacting with a slight delay. While the early nineteenth-century Linde dictionary remains conspicuously silent on the political use of minority,³¹ the Vilnius dictionary of 1861 listed the political meaning of minority as “opposed to majority” and “minority of votes in elections.”³²

Europe-wide, the concept of minority was used to defend the political community against the “tyranny of the minority,”³³ and later taken up by Marxism and anarchism alike to delegitimize the “rule of exploiting minority.”³⁴ These tropes were willingly taken up by early democratism and socialism in the Polish lands. Here, not only corrupted aristocracy was targeted but also imperial governments, giving the critique of minority an anticolonial twist resurging much later elsewhere.³⁵ Socialist programs willingly used the minority–majority nexus to build their claims to legitimacy, following the wording of the Communist Manifesto. Already the program of the “Polish Social-Revolutionary Society in Zurich” in 1872 diagnosed the current social order as “political and economic despotism of the privileged minority.”³⁶ This trope built a cornerstone of socialist thinking in the forthcoming decades.³⁷ It even advanced to be the main socialist credo in the Program of Galician socialists of 1881, stating that previous social struggles were a “movement of minority in the name of minority,” while the struggle of the proletariat was finally a “movement of a majority in the name of this majority.”³⁸ The reverse was possible, too, as in conservative reasoning against the tyranny of majority. No wonder such a double-edge status of the concept of minority was later broadly exploited in the tug-of-war concerning status and rights of various national groups.

Early Iterations

Although there was no Polish parliament after 1832 and no assembly in the Russian Empire up to 1906, Polish MPs were sitting in parliaments of the partitioning powers, multinational imperial states. Moreover, there were regional, advisory assemblies operating partially in Polish.

However, initially the Galician Sejm did not use the concept of minority whatsoever, as there was no factions or voting by number till the 1867 reforms. There was an intense circulation of ideas

between languages in these parliaments while various nationalities in the making asserted themselves against the nationalizing encroachments of the centralizing imperial states.³⁹ The Russian imperial vocabulary initially used the term “nationalities” for the peoples of the empire, and there was no nationally deployed notion of minority because for the time being there was no coherent idea of Russian majority either.⁴⁰ Similarly, Austrian legal language focused on nationalities composing the multinational state, recognizing them on equal footing.⁴¹ However, there were cracks on the architecture of these multinational states, and the heightened relevance of nationality started to meet minority vocabulary.

The Austrian legal culture and ensuing arguments were important tributaries to the debate in Russian Poland. The minority principle was more present in the Hungarian part, being closer to a nation-state, but it had a lower impact on the Polish context.⁴² The debate on national minorities and their rights surfaced predominantly in regional politics. While German language and culture served as the vehicle of state building and its modernization,⁴³ in regions inhabited by one of the nations, there were still other groups striving for recognition and protection. This was especially the case for German-speaking populations seeking to secure their culturally dominant status against other groups growing in significance in demographic terms.⁴⁴ The general congress of Austrian Social-Democracy pled for “rights of national minorities” already on the 1899 Brunn congress and the corresponding program was published in Polish in 1901.⁴⁵ These debates remained not unnoticed in Russian Poland.

Influential works were translated and published with the permission of the Russian censors, or at least reviewed and commented on in the press. The seminal book of an Austrian Jewish lawyer Georg Jelinek, *Das Recht der Minoritäten* [1898], published in Warsaw in 1901 was both reviewed and commented on.⁴⁶ Engaging in a discussion on the balancing influence of groups and protecting the minoritarian position within the state from liberal positions, Jelinek

gave national groups as a primary example of a group whose rights should not yield to majoritarian claims. Thus, Jelinek blazed the path to transfiguration of political minority into national minority. In Polish translation, however, this proximity remains conceptual (nations are one of the minorities), but the coinage of “national minority” (*mniejszość narodowa*) did not appear, in the same way it was not widely used in Austrian imperial discourse on the matter. Jelinek’s writings made a significant impact and were willingly debated in the Polish press in the kingdom.

The first full-fledged public usage of the concept of national minority in Russian Poland known to me is relatively late (and most probably significantly later than the actual presence of the concept in Polish). It was a tiny socialist splinter party, PPS Proletaryat, which in its 1902 Program called for the right to ground cultural institutions for “minorities of different nationality.”⁴⁷ The party followed up on this, designing a federalist Russia with “national cultural autonomy for national minorities” four years later.⁴⁸ Around this date, the notion of national minority (and accompanying ideas) made a breakthrough. The Polish Socialist Party included the idea in its program and propagandistic material. Amid the revolutionary upsurge of 1905 and the accompanying proliferation of political printings, PPS called for a “guarantee of rights for language and national minorities (Jews, Germans, etc.).”⁴⁹ A few months later, the PPS-Left called for securing “free cultural development for the Jewish population and other national minorities” in a leaflet,⁵⁰ and in the 1908 program as well.⁵¹ Meanwhile, the Revolutionary Faction (right wing PPS) included “securing the rights of national minorities in schools, administration and courts” in the 1907 program.⁵² The socialists were often conceptual innovators in the Polish political sphere.⁵³ They were well-embedded in the European modernity and connected internationally, which facilitated wire transfers of concepts via international forums, such as the International, various émigré groups, or just wandering “roving revolutionaries.”⁵⁴

Moreover, as a clandestine movement, they were not bound by censorship because their publications were illegal anyway.

Meanwhile, in Austrian Galicia, the Ukrainian national project gained traction. It confronted alternative identities among Ruthenians (like the Russia-oriented little Russian identity), imperial administration and above all, the Poles guarding their economically and politically dominant position. While Polish nationalists and Eastern Galician aristocracy (*Podolacy*) still denied a national status to the Ukrainians, the Cracow conservatives and peasant parties were ready to admit their national prerogatives. They understood better the danger of total antagonization within the imperial framework, with Polish position far from secure, and aimed at some viable compromise. All of these controversies were expressed in the language of nationalities, but not yet minorities.⁵⁵ The notion of minority was used only descriptively: in a plural form referring to various communities of numerical minority but not to any coherent minority all over the country.⁵⁶ Still in 1906, commenting on the electoral reform and its impact on ethnically mixed regions of Galicia, Polish nationalist lawyer Stanisław Głabiński used the notion of minority in similarly descriptive way referring to Polish and Ukrainian minorities and majorities in various counties.⁵⁷ Once the national issues began to dominate the agenda of the parliament in Vienna and the local Galician Sejm, the notions of minority and nationality converged, but still only as they related to voting. The leader of the Cracow conservatives and governor of Galicia Michał Bobrzyński aptly described this nexus after many attempts to forge a viable compromise in the newly elected Galician Sejm in 1908, when some concessions toward Ukrainian members were made: “For the first time, a majority and minority of the Sejm was formed, with distinct views on the Ruthenian question.”⁵⁸ After the 1907 elections, the political cleavage in the Austrian Parliament was increasingly voiced along national lines, taking over political divisions already by the next ballot—for instance, splitting the socialists along national

lines.⁵⁹ Similarly, in the Galician Sejm, the controversy on the Ukrainian national rights came to the fore when the much-awaited reform of a curial electoral system remained contested exactly because of fears of the large impact of Ukrainian local majorities, capable of outvoting the Poles.⁶⁰ According to the pan-imperial pattern, it was on the local, county level of the multinational crownland where national tensions were increasingly expressed in quantitative terms. The idea of protection of minorities was often introduced by groups having majoritarian status on the higher (crownland or imperial) level and who were willing to protect their privileges, like Germans in Bohemia or Poles in Galicia.

In comparison, the ethnicization of parliamentary life affected the Russian Duma less intensely. It was a very heterogeneous parliament organized around various criteria, just like the Russian Empire itself, but it preserved political rather than ethnic lines of division.⁶¹ However, the Polish circle in the Duma was a self-appointed national-territorial representation and a minority in the Duma, perpetuating the very same nexus of numerical strength and national identity.⁶² The reception of minority vocabulary was also preconditioned by the ongoing Russian debate on regionalism, autonomy, and self-governance.⁶³ Understandably, concepts traveled between languages and empires, even more vividly when jumping directly by means of the Polish language connecting the three communities. Step by step, the concept of national minority emerged in a ready-made form.

Imperial Negotiations

Initially, the concept was not stable, neither in the onomasiological nor semasiological sense, that is, not only was it not clear what “national minority” was, but also the very label was rarely used and not permanent. These lax reservoirs were soon applied to the local context to describe realities of the Russian Empire. For a while, there were alternatives such as “minority groups” or

“minoritarian groups” circulating. Once semantically stabilized, the concept of minority easily acquired a revolving capacity, depending on who was using it and for what purpose. Any claim based on majoritarian (or minoritarian) status might have been easily reversed on other occasions. Such rotation characterized Polish discourse on minorities from its inception—Poles became a suppressed minority against the imperial state, just to be the claimants of rights as numerical (or moral) majority in a different context.

The voices in Russian Poland maintained the parliamentary legacy of the notion of minority by references to the Austrian Parliament where both dimensions were debated simultaneously—parliamentary groups were occasionally close to national ones. Just like in Jelinek’s book, this correspondence came to the fore when debating obstruction, as one of the newspapers in the kingdom reported. “There was a consensus to perform obstruction by a minority when the issue concerned the ‘national conscience.’” The issue was further explored by quoting legal scholars asserting that when there is no national unity in parliament, “one cannot apply the majority principle based on the number of votes only.”⁶⁴ This claim also served to ground the rights of the Poles to build the core of the political community in the Vistula land.

Similarly, the Austrian debate with socialist ideas for non-territorial autonomy was willingly presented in Polish journals. For instance, the press in the kingdom reported on the controversies on minority schooling in the Habsburg state; this is the first moment when the notion of national minority was widely explained and began to be a common coin. All in all, one can observe the stabilization of usage of the compound “national minority” around 1910 when it started to function as a descriptive category for the heterogeneous social spaces, as in the presentation of the Tarnopol voivodeship inhabited by an “Israelite minority” as well as a “Polish minority.”⁶⁵ While references in socialist papers often explained the situation and ushered in general ideas,⁶⁶ the nationalist press commented on issues in a way preparing ground for more

explicit political statements. Not surprisingly, arguments in favor of assimilation and national integration hold the sway. It was, for instance, argued that minority schooling failed to fulfill their aims because they artificially blocked the process of assimilation of a national minority.⁶⁷ These differences notwithstanding, all sides made stronger points concerning the status of Jews. Although the PPS journal *Przedświt* usually supported equal rights for all citizens, the Jews were singled out. They were denied a national status, because as it was argued “national minorities . . . survive and grow only because they have protection and draw strength from their homeland, from their national territory. . . . But Jews have no national territory.”⁶⁸ There was a germinating debate on the territorially defined national minorities before World War I, and the main proponents of concept were the liberals and, to a lesser extent, socialists.

But the very description of a group as a minority carried problematic baggage. There is a constant semantic sliding between the descriptive notion of minority and the spectral presence of a delegitimizing claim coming from the parliamentary context and later socialist language. After all, this is the majority that decides about the result of the voting, and hence, the minority is not entitled to claim anything in its name. And it is the majority who has a right to “struggle in the name of this majority.” This context was not incidental and occasionally useful in the debate on national minorities.

In this vein, much ink was spilled in the Polish press of different breeds to voice the indignation about a planned, but formally finalized only during the war, transfer of the Kholm province from the Kingdom of Poland to Russia proper.⁶⁹ The Polish elites wanted to avoid further partition of the country, also hoping for an increase of Polish autonomy in the future.⁷⁰ In this context, the minority vocabulary was already used, although it did not organize the core of the argument, for instance, while suggesting that even the “Orthodox minority does not want the separation” [of Kholm province from the Kingdom of Poland].⁷¹ There was a tacit competition

about assimilating the local population to Polish or Russian culture, and both sides were aware of it.

In the meantime, the chief authors of Polish nationalism started to forge an alternative meaning which may be dubbed a militant minority. According to them, the Polish numerical minority still was entitled to develop and grow in areas where it had some historical claims, and its actual minoritarian status should not diminish this claim. This was more than just the instrumental usage of minority rights; the claim was based on historical rights and built on moral entitlement, not only to self-preservation but also expansion. Roman Dmowski wrote in his seminal treatise on “the thoughts of a modern Pole” that “if we abandon a territory where we are in a minority, this means only that we give up and decide for denationalization of this minority.”⁷²

Others took the baton. What is also worth noting is that the verb collocation “to be in a minority” referred to Poles nonetheless claiming some territory, possible to be reclaimed demographically in the near future, in comparison to more essentializing form of “to be a minority,” unanimously used toward other ethnicities. Explicitly antagonistic usage spread in more nationalist titles when interethnic competition was declared, and “Polish minorities” were spurred on to defend against, for instance, “the ruthless Ruthenian pressure” by better organization “freeing the Polish population from Jewish and Ruthenian supremacy.”⁷³ Many nationalists raised the bar and openly claimed over-proportional political leverage in contexts where Polish numerical majority was a far cry from reality. Thus, two subcurrents in the concept crystallized. The linguistic use remained quantitative, measuring the numbers and arguing for correspondent entitlements, just like in the parliamentary use. The pragmatic use was often scalar. The minority was big enough to be recognized and entitled to certain protection, or even moral superiority if historical claims were added upon.

Delegitimizing Jewish Majority: Urban Self-Governance and the Duma Elections

Such a numerical minoritarian status of the Poles was, in fact, the case in many cities of Russian Poland. Cities in the Polish Kingdom did not have urban Dumas like other regions of the empire or any other form of urban self-government that would manage local affairs but also facilitate the coagulation of ethnonational identities capable of negotiation with each other.⁷⁴ The Polish elites long sought to convince the imperial administration to introduce self-governance to the cities instead of appointed presidents and commissar-like executive powers. Many had hopes that this would allow the urban areas to flourish by avoiding the malaise of the disinterested government associated with the low bureaucratic standards of corrupt and much-hated Russian state elite.⁷⁵ Self-governance would also introduce a minimal space for public debate and open at least urban realms for limited political bidding. This was exactly what the Russian state officials were afraid of, widely associating the Poles with a disruptive element hostile to the emperor and everything Russian. Neither side was wrong. The self-governance was never introduced, but already the debate on various projects made the Polish elite aware of the obvious: in many cities, the Jewish population was more numerous than the Polish one.

Even in places where it was not exactly the case, the fragmentation of the Polish political scene spurred on fears that Jews, with coordinated balloting, could outvote the Poles. The plot-like undertone of this claim notwithstanding, this sometimes indeed happened as Jewish voters had no interest in supporting antisemitic Polish nationalists who claimed the right to represent the Polish population as a whole. Moreover, the local Russian population composed of administrative staff or military men had much larger ambitions to rule than their numerical strength would suggest.⁷⁶ This let the toying with ethnic limitations of voting through the back door into the already ethnically fractured urban public sphere.⁷⁷ A heated debate burst forth on how to limit the

influence of the “Jewish majority,” which was considered to not have any right to rule the “Polish cities.”⁷⁸ Only some liberal critics pointed at the incoherence and moral deficiency of the unequal voting rights tiered in ethnic terms.⁷⁹ Within this debate, the categories of minority and majority were redefined, just to abandon numerical calculus in the name of a sort of moral right to be a majority despite deficient numbers. For instance, the nationalist daily *Głos Warszawski* approvingly quoted an opinion associated with the “progressive camp” (which back then widely endorsed antisemitic positions)⁸⁰ stating that:

We, the Poles . . . should not be too liberal . . . because in our country, on our own land, in cities marked by our blood there are many places where we are the minority and by equal laws we will no longer be the hosts there. . . [T]here the Jews have the great majority. By equal laws only Jews would be elected to the council, and a Jew would be a president, which would be evidence that we are not hosts there, but the Jews.⁸¹

The Jews were perceived as a danger to Polish cities either despite their minoritarian status or precisely because of it. Even with a higher census, excluding the Jewish poor, workers or petty middlemen, in larger cities, there was a significant group of affluent Jewish bourgeoisie who would gain leverage in any ethnic-blind curial voting system. The minority–majority nexus was also employed to explain this, because “the Jews are economically the strongest and well organized . . . in the cities where they are minority.”⁸² This debate prepared an important reversal in the deployment of the concept. Not only was the link between minority–majority status and numerical size of the group weakened, but the Polish nationals also asserted themselves as a majority in stark contrast to previous usage when often the Poles were the minority suppressed by

the state. The self-government controversy elevated the minority debate to a highly antagonistic competition in the general atmosphere already heavily tainted with antisemitism.⁸³ Here the scalar use of minority was so far-fetched that moral claims enabled a complete reversal, leading to a notion of moral majority being in fact numerical minority. The consequences were grave.

This shift expressed itself in the Duma elections of 1912 and the ensuing anti-Jewish campaign and boycott. It was initiated by the National Democracy after the party scored lower than expected in the Duma elections, allegedly because of the Jewish voters. Clearly, Jewish voters did not support antisemitic candidates. What is more important, candidates of parties other than National Democracy were equally willingly delegitimized as gathering Jewish votes and hence not entitled to be elected at all.⁸⁴ This delegitimization of politicians supported “by the minorities” is well-known from the much later presidential campaign of 1922. It ended with the assassination of the president-elect Gabriel Narutowicz, who was supported by minoritarian MPs against the aristocratic candidate of National Democracy.⁸⁵ This pattern appeared already in 1912 against the socialist Duma envoy, Eugeniusz Jagiełło. The main Catholic daily unequivocally explained the significance of these elections and the fact that Jagiełło became the envoy: “It is about freeing us from the Jewish joke, about being hosts in our own home, so Jews could not act as our lords and dictate to us their will. . . . This choice demonstrated that in our country we are dependent on the Jewish minority, who is hostile to us.”⁸⁶

The concept of minority was again a revolving concept—willingly used to support or delegitimize claims on demand. The minority–majority nexus was for the first time coupled with the Jewish population for good (and for worse). It also conflated the minorities of will, that is, groups with distinct characteristics who wanted to preserve their identity against the encroachments of the state or other groups, with groups discriminated against because of their ethnic background, regardless of their assimilation.⁸⁷ Association of the minority vocabulary with

the Jews and the antisemitic turn effectively eliminated ideas of non-territorial minority protection. This shift prepared the later outspoken rejection of minoritarian claims when forging the new statehood after 1918.

The New State and the Ethnic Reversal

World War I, apart from crystallizing national aspirations, generally strengthened the ethnic lens. Particular populations were singled out for resettlements, and the other way around, various forms of humanitarian aid were delivered according to ethnic principle among refugee communities and in the occupied lands.⁸⁸ Populations were mixed and unmixed due to deportations, war migration, and large border shifts that moved states and created new ones, thus making exiles at home.⁸⁹ Also, the reshuffled state allegiances triggered a new wave of negotiations and perpetuated mutual distrust. This was the case of the Jewish population of formerly Russian Poland hoping for the favorable audience before the German occupational forces regarding educational policies. This galvanized—eventually unfulfilled—fears of Polish public opinion.⁹⁰ Similarly, benign forms of political participation, such as municipal elections, were increasingly perceived in terms of ethnic confrontation. These fractures would be fully revealed as nation-states began to rise.

The new Poland in the making amid the central European civil war in any of its possible and contested forms would encompass populations of different ethnic and national origins. The “titular” Polish nationality was by no means a singular one, and the proportion of other groups was as high as one-third of the population.⁹¹ Simultaneously, Poles waged territorial disputes and armed conflicts with all the major ethnic groups apart from Jews.⁹² In times of (ethnic) nation-states and popular sovereignty, the earlier receipts of building an estate-grounded, supra-ethnic political nation were no longer valid. Also, the more recent imperial arrangements of the

heterogeneous social space were not handy. Not only were they discredited, but Polish nationalists advancing from an irredentist, suppressed minority now aimed at a full-blown “ethnic reversal” in their own state.⁹³ Hence, the institutional and ideological legacies of the three imperial partitioning states at peace and at war remained present as often unexpected refractions.⁹⁴ This was the time of nation-states, and the Polish nation had already been conceived largely in interclass, ethnic terms.⁹⁵ However, this did not remove the ethnic heterogeneity, and any distinction between empire writ small and nation-state remained blurred.⁹⁶ The new state was to accommodate ethnic diversity in a time of ethnic nationalism.

The arena for the debate on the mode of this accommodation was, among others, the newly elected legislative Sejm. From the very beginning, the minority issue was considered the crux to secure the inner stability and external credibility of the state. “Regardless of our borders on the East . . . there will be national minorities in the Polish state and their rights cannot be ignored,”⁹⁷ noted one socialist MP. There were, however, very diversified opinions and controversies that touched upon the political implications of the term. Before any legal arrangements were made, one needed to decide who was a national minority at all. While “territorial” minorities remained relatively unquestioned, the status of Jews was a bone of contention, despite the fact that it was the singular ethnic minority not entangled in any direct territorial conflict with the Polish state, like Germans, Lithuanians, Ukrainians or even Czechs were.

First, there was no agreement if Jews, previously so often singled out as dangerous minority (or majority), were a national minority at all. Now, this status would bring certain guarantees and protection, which many did not want to give them, either out of sheer hostility or because of an assimilationist stance fostering civic equality. The Jewish representation in the Sejm thought otherwise. “We are in Poland a national minority. . . . We want to lead an

independent national life. . . . As a national minority we want autonomy,”⁹⁸ announced the Zionist leader, Izaak Grünbaum, probably the most active defender of Jewish collective rights, speaking often in the name of national minorities in general. In this argumentation, the scalar layer of the concept was used to claim entitlement as a minority of will. Although the Jewish population was dispersed (“had no land,” as one Polish MP commented), it had preserved cultural specificities, it had a language to be recognized as a minority language, and it had been accepted as a nation with territorial claims along with Mandatory Palestine.

This perspective was rejected almost unanimously by non-Jewish MPs, socialists postulating universal equal rights and autonomy for territorial minorities only.⁹⁹ While the socialists defended the “separation of the Church and the state,” they also vehemently opposed the rights of religious minorities, who would “have bigger privileges and higher status than the religion, confession of most of the society.”¹⁰⁰ Here the socialists remained faithful to the II International orthodoxy on the Jewish question. With some exceptions, they firmly believed that antisemitism would vanish for good once modernization executed its final blow against old social structures and premodern prejudice.¹⁰¹ For one socialist leader, Feliks Perl, himself of Jewish descent, the Jews did not require any special protection as national minority, as they were not a nationality but mere “a residue of a medieval caste.”¹⁰² Another socialist, generally a proponent of wider autonomy for territorial minorities, Mieczysław Niedziałkowski, insisted that “the Polish state should remain a Polish state” and autonomy for Jews should be dropped. The assumed territorial base for self-governance of national groups practically undermined any ground for Jewish rights. Many speakers differentiated between “dispersed minorities” and “territorial minorities,” which was the way to single out the Jews.¹⁰³ What was even more vehemently rejected was the recognition of Yiddish as a minority language in “which the right to address the municipal and state authorities would be guaranteed,” as postulated by one Jewish MP.¹⁰⁴ The

language issue was additionally complicated by the unanimity of the Jewish population on which language would best serve their purpose, Yiddish, Hebrew, and Polish being the ideas on the table.¹⁰⁵ However, the scene was reshuffled by the Minority Treaty, the ensuing indignation and shifts in political alignments.

The 1919 Versailles Peace Conference created new states that left countless populations beyond their “titular states.” Accordingly, the accompanying Minority Treaties, first with Poland and later with other states, sought to manage this grim situation. However, the minorities’ treaties were bitterly resented as a humiliation by the countries concerned, sensitive while cherishing their newly acquired independence. These vehement protests often pointed out the alleged Polish tradition of tolerance and cohabitation of different national and ethnic minorities (already unanimously called this way) in the Polish-Lithuanian Commonwealth. The concept of minority appeared to be in the very center of a debate entangled with the constitution drafting and setting in motion the levers of broader political shifts.

While Jewish diplomacy played an important role in pushing forward the idea of the treaty,¹⁰⁶ it gained additional traction after the wave of anti-Jewish hostilities enacted by the Polish military during the Polish-Bolshevik war.¹⁰⁷ Then the idea of protecting the Jews of Poland as a minority found more favorable ears in diplomatic conventicles. To make things worse, also on the domestic level, the minority issue was closely associated with Jews. To a large extent, it was a result of the composition of the parliament. Because of border conflicts and perhaps some conscious electoral calculations, in the legislative Sejm, there were almost no other representatives of the minorities apart from a few Polonized Germans and Jews of different political breeds. They willingly took up the baton of arguing in the name of minorities, and some of them were the only MPs openly defending the Versailles minority provisions.¹⁰⁸ This

defending the rights of others hardly spurred on the enthusiasm of Polish nationalists. The very reference to minority protection triggered hostile reactions. One of the nationalist MPs explained:

You have courage to justify your claims by the minority protection in the Versailles Treaty. You say, as one of the MPs argued here, that “the higher tribunal has already passed a judgment,” so it means that for your internal issues there is a higher tribunal, a Versailles one. This is already a clear action against the Polish state.¹⁰⁹

Now it became a touchstone of Polishness to reject any claims appealing to the “foreign-imposed” treaty, and minority claims were easily delegitimized.

Minorities Minoritized

The constitutional debate entered the final phase in July 1920 in very difficult war circumstances—this was the time the Polish army was in retreat and the Bolsheviks came close to Warsaw. The finally accepted constitution was a compromise in many respects. The minority rights were formulated in a vague way, allowing for much arbitrariness in actual practice. There were no legal means specifying territorial autonomy, but the rights of “preserving the nationality and developing the mother-tongue and national characteristics” (Art. 109) were addressed, arguably in direct response to international pressure specifying the issues of citizenship and minority rights in the annexes to the Versailles Treaty. The constitution regulated the issue of minority rights through an imprecise right to local self-governance—“autonomous minority unions, endowed with the character of public law organizations, within the limits of unions of general self-government.” Minority groups were also granted the right to organize educational,

charitable, or religious institutions (Art. 110), and this article was a verbatim copy of Article 8 of the Minority Treaty. The articles of the constitution regarding the minorities were debated in October 1920 in the atmosphere of patriotic intensification of postwar nationalism and growing distrust of Jewish politicians. While minority rights had been hotly disputed mainly as Jewish rights already in the spring of 1919 (the constitutional declaration and Versailles negotiations), the antisemitic undertones, additionally harnessed against the left, had never been so intense before.

The concept of national minority stabilized and, in later parliamentary sessions, was usually used uncontested, for instance, when debating the details of the electoral laws. Then, the concepts of parliamentary minority and national minority met again. The idea behind various forms of gerrymandering and implicit limitation on voting leverage was stated explicitly: “The non-territorial minority has to be significantly, very significantly, reduced,” declared a nationalist priest-MP, Kazimierz Lutosławski.¹¹⁰ Depriving “national minorities” of representation and keeping the Sejm controlled by the “Polish majority”—as one of the apt critics commented—was also aimed to “ignore minorities among the Polish representation such as socialists and others.”¹¹¹ In this way, the concept of minority came full circle: from initial parliamentary iteration, funneled via the national matrix, to be back as a means of limiting political opposition. This semantic oscillation was not always that polemical, though, and the concept in liberal political writing was used in a neutral way to describe political arrangements in “democracy aiming at accommodating the rule of the state with the rule of every human and every minority.”¹¹² The general atmosphere was, however, more inclined to majoritarian sovereignty.

The readiness to admit minority rights due to the general diffusion of democratic ideals and impact of the liberal ideas on the multiethnic states was mere lip service. It was often limited to verbal compliance, and, for instance, constitutional drafts contained cunning “tricks”

effectively marginalizing the minorities on the state level.¹¹³ Despite sometimes deliberately convoluted legal architecture, the nationalists and the center were not willing to accommodate cultural diversity of the new state, either remaining silent on any collective rights for the minorities or projecting hybrid regimes effectively casting tiered citizenship. The socialists and populist left were ready to accommodate the minorities along the general principles of popular self-governance.¹¹⁴ Occasionally, however, such a position resulted from similar assumptions. The same policies might have been viewed as a means of securing minority rights but also a way to keep them from Polish populations. The significance of the Jewish actors in the debate against the backdrop of tacitly antisemitic public opinion weakened the acceptance of minoritarian claims in general and diminished political leverage of other minority groups as well. Simultaneously, the minority issue was more strongly territorialized to single out Jews and deny them minority protection. These dynamics contributed to closing the issue in borderland regions and strengthened the tendency to build a type of ethnic democracy in Poland.¹¹⁵ The resulting regime was a parliamentary democracy with formally dispersed representation, but on the level of its moral legitimacy, it remained a majoritarian, “Polish” democracy, which let itself be known during the Narutowicz assassination and in the ensuing debate in 1922.

Conclusion

The concept of minority, emerging in the parliamentary context, took up earlier legacies of cultural heterogeneity, such as religious differences. In respect to nationalities, it started to be used in the early twentieth century in subregional contexts of the continental empires, where one nationality shared territory with another. While in parliament, minority had been understood chiefly in numerical terms, in national contexts, it also assumed a qualitative element. Just like a parliamentary majority had the leverage to decide the results of the voting, numbers were used to

establish domination in national confrontations. However, qualitative or historical matters often were grounds to claim moral entitlement to political or cultural influence. Thus, linguistic, quantitative use has been enriched by pragmatic, scalar dimension. These characteristics were used interchangeably, depending on the contexts and political motives. The Polish population could be a minority or majority, and both roles might have served to argue for certain privileges.

This oscillation stabilized with the transition from the imperial to the national state figuration. Although both forms sought to manage social heterogeneity, the concept of the minority in a strong sense and the ensuing dynamic of minoritization was a correlate of the latter. The notion of homogeneous “national minority” lumped together all members of the given group on the state level, not referring to a locale-specific circumstances. It singled out this group and created it as an objective entity, deserving some rights according to the scalar logic but marginalized exactly because of this quantitatively and qualitatively minoritarian status. It was so because the revolving symmetrical pair minority–majority became obsolete in favor of a more asymmetrical juxtaposition of minority (or minorities) against the Polish nation and assumed full citizenship attached to it. It became one of the building blocks of the state figuration based on national sovereignty, which started to minoritize those who were not its nationals and hence full citizens. In contrast, earlier empires consisted of nationalities, and even if one of them used to be dominant, it was not legitimized by its majoritarian status.

It has been argued that the peculiarity of Central and Eastern Europe with its patchwork empires and conflicted nation-states needs to be grasped as a historical product of institutional arrangements rather than some unspecific essence of the region.¹¹⁶ Nonetheless, the paramount transformation of the state figuration in the age of fracturing empires was an important laboratory of institutions designed to cope with this disintegration. These trail-blazing institutions provided new paths and scales of integration afterward. The debate investigated above is one of the

important realms within this laboratory.¹¹⁷ The concept of minority and the postwar minority regime was forged historically in particular debates and by particular people. It has many iterations, some of them benign and intended to foster liberal cooperation of nationalities. The concept of minority is perhaps not essentially tainted with exclusion and violence. It was, however, deployed in various ways and impactful for ensuing political regimes. The minoritarian mode of managing heterogeneous social space within the nation-state designed it to always remain a figuration regulating this heterogeneity by patterning diversity into inequality, just like empires used to do.

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